

1604
October 10,
12, 17, 19

The Earl of Nottingham, Lord Admiral: fine £2000, the extent [to be] void, fine Bruen £100, and acquit Kinge.

The Earl of Dorset, Lord Treasurer: sentence the Serjeant guilty of all, fine £1000, the extents [to be] void, suspend [him from his office]; acquit Kinge and Bruen.

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Lord Chancellor: find him guilty in all of corruption and ambition, craft and covetous practises; fine [him] £2000, and suspend [him]; [fine] Bruen £200; acquit Kinge.

But the greater number of the Judges acquitted the Serjeant of all note and blemish of infamy.¹

WRIGHT
CONSTABLE
and others

Another day in the same term; another cause between Wrighte, plaintiff, and Constable and Mathewes and others, defendants, for malicious practice in indicting Wrighte as a 'common barrettor,' for distraining his chattels to pay the entire subsidy for the whole parish, for killing his turkeys, for riotous entry, under colour of forfeiture of copyhold, to dig 'earthe, called More earthe'²; and it did not appear in all the depositions³ that the plaintiff had anything against anyone but for a 'pue' or seat in the church, and that he, on behalf of the poor men of the parish, did not agree with the rich for stinting the common.

Barrettor

A barrettor is *quasi Barre, traher*, 'that sues & stirres vp other men's suites, &, as appeares by the enditemente, must be stuffed wth many other offences.' The defendants were fined each £40, with imprisonment.

Sentence

FOURDE'S
case

Another day in the same term, Fourde was brought up *ore tenus*. He having a cause pending in the Chancery, and foreseeing that the Lord Chancellor would grant an Injunction against him, preferred a petition to the King that he would require the Lord Chancellor to stay the granting of the Injunction, for it would undo him, his wife and his children. The King sent a messenger of the Privy

¹ This is hardly borne out by the text. As to his fine, see Appendix VII.

² Halliwell gives 'Moor-stone, a kind of granite found on the moors.

³ *Liviers*.